

		delegation clause”]; accord, <i>Nickson v. Shemran, Inc.</i> (2023) 90 Cal.App.5th 121, 132; see also Opp., in passim.) Therefore, the court must delegate the remaining issues for the arbitrator to decide, including plaintiff’s remaining challenges to enforcement based on the scope of the arbitration agreement or the “arbitrability” of her claims (see Opp. at pp. 5-6), unconscionability (<i>id.</i> at pp. 7-8), and waiver (<i>id.</i> at pp. 8-9). <i>CMC set 5/7/26 is ordered vacated.</i> <i>ADR Review Hearing set 2/5/27 at 8:30 a.m. in Dept. C44.</i> Defendants shall give notice. If parties/counsel wish to give argument, both hearings will be continued to July 9, 2026 at 1:30 p.m. in Dept. C44.
7	Qadri vs. Direct Express, Inc 2025-01523275	Motion to Dismiss Defendant Comerica Bank, Inc.’s Motion to Dismiss is GRANTED. On November 3, 2025, the Plaintiff in this action—nominally a woman named Karin Z. Qadri (“Qadri”)—filed this pro se action against Defendant Comerica Bank (“Comerica”) and Defendant Direct Express, Inc. Although Plaintiff’s handwritten complaint identified four causes of action, the only actual conduct alleged is Comerica’s alleged failure to reactivate Plaintiff’s card after she reported it stolen. (Compl. at p. 3.) Comerica determined that Qadri is, at best, only the nominal plaintiff in this action. In fact, the true “Plaintiff” in this action—at least for purposes of Code of Civil Procedure section 391—is an individual named John Luckett (“Luckett”), who has been deemed a vexatious litigant. (Note: I confirmed John Luckett’s name appears on the vexatious litigant list) Courts may designate certain persons as vexatious litigants and enter a prefiling order “enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” (Code. Civ. Proc. § 391.7(a).) “The clerk may not file any litigation presented by a vexatious litigant subject

		to a prefiling order unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing.” (Code Civ. Proc. § 391.7(c).) For purposes of the vexatious litigant statute, the “Plaintiff” is “the person who commences, institutes or maintains a litigation or causes it to be commenced, instituted or maintained.” (Code Civ. Proc. § 391(d), emphasis added.) It is well established that a vexatious litigant cannot circumvent a prefiling order by acting through a third party or litigating under another person’s name. In <i>In re Shieh</i> (1993) 17 Cal.App.4th 1154, the Court of Appeal imposed a prefiling order on a vexatious litigant that extended beyond his in propria persona activities to include litigation filed through counsel. (Id. at pp. 1167–1168.) The court found it was “apparent from syntax, grammar, style and tone that ... many—if not most—of the pleadings and other documents filed by [the vexatious litigant] or on his behalf have been written by the same person.” (Id. at p. 1167.) Because the attorneys who “represented” the vexatious litigant “serve[d] as mere puppets,” the court concluded that “a prefiling order limited to [his] in propria persona activities would be wholly ineffective as a means of curbing his out-of-control behavior.” (Id.) Just as the vexatious litigant in <i>Shieh</i>, Luckett has written, served and filed most—if not all—of the Plaintiff’s pleadings in this matter (including Plaintiff’s opposition to this motion). (Averett Decl., ¶¶ 4, 18.) Luckett’s phone number and email address appear on the caption of pleadings purportedly filed by Qadri. (Id., ¶¶ 6–7, 18(a).) Counsel’s attempts to interact with Qadri in the course of investigating this matter made it clear that Qadri has, at best, only a limited understanding of these proceedings, while Luckett is directing and coaching Qadri. (Id. ¶¶ 3–18.) Thus, for all intents and purposes, Luckett caused this action to commence and is maintaining it. In opposition, the “Plaintiff” states she has never been declared a vexatious litigant, that she is elderly, and Defendant’s counsel could “cause me to hart attack and kill me from unwanted stress and harassment.” Plaintiff does not address the merits of the motion that Luckett filed and is maintaining this action, and there is no sworn testimony contradicting any of the evidence detailed in the Averette Declaration.
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		Accordingly, because Luckett has not obtained a prefilng order in this case, the motion is GRANTED and the case is dismissed. (Code Civ. Proc. § 391.7(c).) Clerk to give notice. If parties/counsel wish to give argument, the hearing will be continued to July 16, 2026 at 1:30 p.m. in Dept. C44. Plaintiff is to appear in person, pursuant to the minute order dated 11/20/25 (ROA 35).
8	Wei vs. Sarkis 2025-01509812	Demurrer to Complaint Defendants Anthony M. Sarkis and Shivangini Chudhary's demurrer to the complaint of Yilu Amanda Wei is OVERRULED without prejudice. There is no proof of service in the court's file that indicates that defendants served the notice of demurrer and supporting documents on the Ms. Wei. Further, there is no indication that defendant met their statutory meet and confer obligations under Ca. Civ. Pro. Section 430.41. Clerk to give notice. If parties/counsel wish to give argument, the hearing will be continued to July 16, 2026 at 1:30 p.m. in Dept. C44.